

6.

CASE #	CASE NAME	HEARING NAME
CVPS2406494	COLTON VS BMW OF NORTH	MOTION FOR ATTORNEYS FEES BY ALLISON COLTON, KYLE COLTON

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, the parties settled through a written settlement agreement, with the Court to decide attorney fees upon separate motion. (Daghighian Decl. ¶ 39.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records, Declaration of Chad A. David, and motion (pp. 5-6), counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Chad David, Attorney	5.5	\$795.00	\$4,372.50
Joshua Youssefi, Attorney	8.4	\$745.00	\$6,258.00
Nicolas Dillavou, Attorney	18.4	\$745.00	\$13,708.00
Christine Morano, Attorney	7.5	\$495.00	\$3,712.50
Lisa Tyler, Paralegal	14	\$250.00	\$3,500.00
Anna Costello, Paralegal	22.7	\$250.00	\$5,675.00
Inigo Gatus, Paralegal	1.4	\$250.00	\$350.00
Sierra Jacobs, Paralegal	3	\$250.00	\$750.00
Additional Wrap Up Fees	6	\$745.00	\$4,470.00
TOTAL	86.9		\$42,796.00

Here, the hourly rates are not reasonable for Riverside County. Counsel is located in Temecula yet is billing at rates comparable to those in Los Angeles County. The court is reducing to reasonable rates in this area.

A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) In this case, there were three partners, one associate attorney, and four paralegals. However, Plaintiffs do not explain how this routine lemon law action, which required no law or motion and settled months before trial, necessitated the higher billing rates of a managing partner or lead trial attorney. Accordingly, the partners' hourly rates are reduced.

A review of the billing records reveals numerous instances of duplicative and unnecessary billing entries. Paralegals billed for attending case meetings to record notes, filing notes, sending internal emails, creating and sending Zoom links for depositions, and for processing, mailing, and tracking the settlement check. These are administrative and clerical tasks.

Plaintiffs seek 6.0 hours in wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion, as well as collecting payment. However, the billing records show that the settlement check has been processed and mailed. (David Decl., Exh. 7.) This amount of time to prepare a motion and prepare for a hearing is excessive.

Plaintiffs seek a 1.3x multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no evidence supporting such an enhancement in this uncomplicated case. Specifically, there was no exceptional quality of work or skill in this case to justify a multiplier, especially as there was no law and motion presented in this basic lemon law case. Plaintiffs submit no evidence to show that the depositions and written discovery performed in this case were anything but routine. Counsel's request based on contingency fee should already be accounted for in their hourly rate.

As for costs, Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of "costs and expenses" to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiffs allege they have already filed a memorandum of costs, no such filing appears on the docket. (Motion, p. 9; David Decl., Exh. 8.) Defendant's opposition does not address Plaintiffs' claimed costs.

Lastly, it should be pointed out that in Plaintiff's motion for attorney's fees, page 6 lists Nicolas Dillavou billing 18.4 hours at a rate of \$745 per hour for a total of \$21,158. The correct amount per those numbers is \$13,708, a difference of \$7450.

The modifications to the award of attorney fees are reflected in the chart below:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Chad David, Attorney	5.5	\$550.00	\$3,025.00
Joshua Youssefi, Attorney	8.4	\$500.00	\$4,200.00
Nicolas Dillavou, Attorney	18.4	\$500.00	\$9,200.00
Christine Morano, Attorney	7.5	\$300.00	\$2,250.00
Lisa Tyler, Paralegal	14	\$150.00	\$2,100.00
Anna Costello, Paralegal	19.7	\$150.00	\$2,955.00
Inigo Gatus, Paralegal	1.4	\$150.00	\$210.00
Sierra Jacobs, Paralegal	3	\$150.00	\$450.00
Additional Wrap Up Fees	2	\$300.00	\$600.00
TOTAL	79.9		\$24,990.00

Motion for Attorney's Fees GRANTED as shown above.

Award of \$24,990.00 in fees + \$800.40 costs for total award of \$25,790.40.

OSC re dismissal confirmed for 10.19.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2501673	SUGAMELI-JARFAS VS GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY	MOTION FOR ATTORNEYS FEES BY DARLEAN VIRGINIA SUGAMELI- JARFAS

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, the parties settled through a written settlement agreement, with the Court to decide attorney fees upon separate motion. (Daghighian Decl. ¶ 39.)

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